April 2, 2025

Ms. Lindsey Wells
Michigan Department of Environment, Great Lakes, and Energy
Cadillac District Office
120 West Chapin Street
Cadillac, MI 49601

Subject: **Wexford County Landfill, LLC, a GFL Environmental Company**
ROP Number ROP-MI-N3862-2022, SRN N3862
Response to Notice of Violation

Dear Ms. Wells:

On March 13, 2025, Wexford County Landfill LLC, a GFL Environmental company (Wexford) received a notice of violation (VN) from the Michigan Department of Environment, Great Lakes, and Energy (EGLE)'s Air Quality Division. The VN requires a written response to describe the following: the dates the violations occurred, an explanation of the causes and duration of the violations, whether the violations are ongoing, a summary of the actions that have been taken and are proposed to be taken to correct the violations and the dates by which these actions will take place, and what steps are being taken to prevent the reoccurrence. A summary of the alleged violations from the VN is provided below.

Process Description	**Rule/Permit Condition Violated**	**Comments**
EULANDFILL<34 (MSW Landfill)	40 CFR Part 60, Subpart WWW	Failure to calculate and report annual non-methane organic compound (NMOC) emission rate in accordance with 60.754(a)(1), 60.757(b)

Process Description	Rule/Permit Condition Violated	Comments
EULANDFILL<34 (MSW Landfill)	40 CFR Part 60, Subpart WWW	Failure to install a compliant gas collection and control system (GCCS) in accordance with 60.752(b)(2)
EULANDFILL<34 (MSW Landfill)	40 CFR Part 60, Subpart XXX	Failure to submit notification pursuant to 60.7(a)(4); Failure to calculate and report annual NMOC emission rate in accordance with 60.764(a)(1), 60.767(b)
EULANDFILL<34 (MSW Landfill)	40 CFR Part 60, Subpart XXX	Failure to install a compliant GCCS in accordance with 60.762(b)(2)
EULANDFILL<34 (MSW Landfill)	MI-ROP-N3862-2022, Special Condition (SC) VI.2, VII.6	Failure to calculate and submit a timely report of annual NMOC emission rate in accordance with MI-ROP-N3862-2022
EULANDFILL<34 (MSW Landfill)	MI-ROP-N3862-2022 Special Condition IX.1	Failure to submit application to revise MI-ROP-N3862-2022

Background

Wexford received approval from the Materials Management Division of EGLE for the most recent expansion at the facility in August of 2012. The first cell that was part of the 2012 expansion was Cell J1. Construction of Cell J1 began on or before June 28, 2013. As the construction of the most recent expansion began prior to July 17, 2014, this site was considered an existing source that was subsequently subject for the Federal Plan (40 CFR, Part 62, Subpart OOO). Wexford installed and began operating a landfill gas collection and control system (GCCS) in 2016.

In April 2016, Wexford conducted Tier 2 testing to obtain a site-specific NMOC concentration. The sampling was conducted in accordance with a test plan approved by EGLE. In the report submitted to EGLE, the calculated NMOC emission rate was less than 50 megagrams per year (Mg/yr) through 2021. A subsequent inspection of the site was conducted on November 6, 2017 by Mr. Robert Dickman. The inspection concluded that Wexford was in compliance and that the NMOC concentration for 2017 was 31.04 and that the "testing was adequate to demonstrate NMOC emissions less than 50 Mg/yr." Therefore, based on EGLE's inspection and data review, Wexford was in compliance with the applicable air regulations at that time. The November 6, 2017 inspection report written by Mr. Dickman is provided in Attachment 1.

A follow-up Tier 2 was conducted in March 2022. The sampled NMOC concentration was less than the previous Tier 2 and resulted in an NMOC emission rate of less than 34 Mg/yr for

2022 and 2023. The annual NMOC calculation submitted to EGLE in June 2024 showed the NMOC concentration was again greater than 34 Mg/yr. Thus, the facility began developing a GCCS plan for submittal in April 2025.

Discussion of VN

Subsequent to the receipt of the VN, Wexford reviewed the Tier 2 test data and related calculations from the April 2016 sampling event. Upon our further detailed review, the default values used in the United States Environmental Protection Agency's LandGEM Gas Model for Lo and k in the report were found to be incorrect and input in error. When corrected default values were substituted into the 2016 LandGEM, the NMOC concentration was greater than 50 Mg/yr threshold of 40 CFR Part 60, Subpart WWW (the controlling rule at the time of sampling). Based on the revised calculations, a GCCS plan should have been submitted in April 2017 and the landfill gas collection system should have been installed and tested by October 2018.

Wexford will submit a GCCS plan by April 30, 2025. Once the plan is approved, Wexford will complete installation of any additionally required elements of the existing GCCS and begin complying with all monitoring, recordkeeping, and reporting requirements. A permit revision to the current Renewable Operating Permit (ROP) for the Wexford Landfill will be submitted upon receipt of additional direction that Wexford requested from EGLE. These actions described above will resolve the violations pertaining to 40 CFR, Part 60, Subpart WWW and 40 CFR, Part 62, Subpart OOO.

Finally, in the VN there is reference to the construction of Cell H-West in June 2021. As discussed above, the construction of Cell H-West did not trigger Wexford to become subject to 40 CFR, Part 60, Subpart XXX (NSPS). The last expansion for the facility was obtained in 2012 and the first cell that was part of that expansion began construction prior to July 14, 2014. The definition of modification in the New Source Performance Standards (NSPS) is:

An increase in the permitted volume design capacity of the landfill by either lateral or vertical expansion based on its permitted design capacity as of July 17, 2014. Modification does not occur until the opener or operator commences construction on the lateral or vertical expansion.

Therefore, the facility is subject to the requirements of the 40 CFR, Part 62, Subpart OOO.

If you have questions, please contact me at (989) 306-4186 or Anthony Testa at (734) 718-4262. We appreciate your assistance with this matter.

Sincerely,

WEXFORD COUNTY LANDFILL LLC

Christopher Gee

Chris Gee
Site Manager

Attachments: EGLE Inspection Report Dated 11/06/17

cc: Anthony Testa - GFL
Tami Craig – GFL
Cheryl McDonald – GFL
Dana Oleniacz – EIL
Annette Switzer – EGLE
Christopher Ethridge – EGLE
Brad Myott – EGLE
Jenine Camilleri – EGLE
Shane Nixon - EGLE

Attachment 1

EGLE Inspection Report
November 6, 2017

DEPARTMENT OF ENVIRONMENTAL QUALITY
AIR QUALITY DIVISION
ACTIVITY REPORT: Scheduled Inspection

N386242408

FACILITY: WEXFORD COUNTY LANDFILL		**SRN / ID:** N3862
LOCATION: 990 US 131 NORTH, MANTON		**DISTRICT:** Cadillac
CITY: MANTON		**COUNTY:** WEXFORD
CONTACT: Vicki Garon , Engineer		**ACTIVITY DATE:** 11/06/2017
STAFF: Rob Dickman	**COMPLIANCE STATUS:** Compliance	**SOURCE CLASS:** MAJOR
SUBJECT: Scheduled inspection of this major source		
RESOLVED COMPLAINTS:		

Wexford County Landfill is classified as a Type II sanitary landfill, also known as a Municipal Solid Waste (MSW) Landfill. The facility currently accepts petroleum contaminated soils, sludge, asbestos containing waste, municipal household waste, and other waste. The landfill received a volume expansion permit in April of 2000, and another in August of 2012. It has maximum design capacity of 3.45 million megagrams.

Landfill gas is collected at Wexford County Landfill by an active gas collection system. This system consists of vertical extraction wells that are installed in the depths of the landfill refuse and which remove landfill gas by vacuum that is applied to the well from the blower. The collected landfill gas is then routed to a flare for combustion. Since the NMOC emissions from the landfill have not yet reached 50 Megagrams as prescribed in NSPS 40 CFR 60, Subpart WWW, there are no operational requirements for the active gas collection system.

Additionally, a contaminated groundwater remediation system utilizing aeration ponds is currently in post-closure. Because of a monitoring requirement, it continues as an active emission unit. The facility also employs the use of a leachate evaporation system exempt from the requirement to obtain a Permit to Install pursuant to Rule 285(aa).

I performed an inspection at this landfill per ROP number MI-ROP-N3862-2017. No odors were noted downwind and outside of the facility. All haul roads, the plant yard, and the active parts of the landfill had no noticeable visible emissions during the inspection and appeared to be in good repair. An internal records review of the facility indicated no complaints received by the AQD in the last 12 months. Testing to determine Non-Methane Organic Compound (NMOC) emissions (Tier 2 testing) was performed in March of 2016. Following are the results of the inspection:

<u>EULANDFILL<50</u> - This emission unit is the landfill. This landfill has a design capacity greater than 2.5 million megagrams and 2.5 million cubic meters. Additionally, the landfill has received a volume expansion permit in April of 2000, and another in August of 2012. These two parameters make it subject to NSPS 40 CFR 60, Subpart WWW. NMOC emissions based on Tier 2 testing and LandGem modelling were determined to be less than 50 megagrams per year.

I. EMISSION LIMIT(S)

There are no emission limits associated with this emission unit.

II. MATERIAL LIMIT(S)

There are no material limits associated with this emission unit.

III. PROCESS/OPERATIONAL RESTRICTION(S)

There are no process or operational restrictions associated with this emission unit.

IV. DESIGN/EQUIPMENT PARAMETER(S)

There are no design or equipment parameters associated with this emission unit.

V. TESTING/SAMPLING

Tier 2 testing for annual NMOC emissions was last performed in March of 2016 and demonstrated emissions of 31.04 Mg for 2017. This testing was adequate to demonstrate NMOC emissions less than 50 Mg/yr therefore, further Tier testing is not required.

VI. MONITORING/RECORDKEEPING

The facility is required to keep on-site records of the design capacity report, the current amount of solid waste in-place, and the year-by-year waste acceptance rate. Records regarding this were reviewed on site and appeared complete and up to date.

The facility shall calculate the annual NMOC emission rate using the most recent version of USEPA's Landfill Gas Emissions Model (LandGEM). NMOC emissions based on LandGEM modelling and this testing were 31.04 Mg for 2017.

VII. REPORTING

All semi-annual and annual deviation reporting has been completed in a timely manner. Review of this reporting is documented in MACES.

The facility is required to submit an annual NMOC emission rate report to the District Supervisor. This emissions rate report is through the MAERS reporting system. This reporting has been performed annually and has been previously reviewed. Please see MACES for further details.

VIII. STACK/VENT RESTRICTION(S)

There are no stack parameters associated with this emission unit.

IX. OTHER REQUIREMENT(S)

If the NMOC emission rate is calculated to be equal to or greater than 50 megagrams per year, the facility is required to install a collection and control system. NMOC emissions based on LandGEM modelling and this testing were 31.04 Mg for 2017.

The facility is required to comply with all applicable provisions of 40 CFR Part 60 Subpart A and WWW, "Standard of Performance for Municipal Solid Waste Landfills", as they apply to the flare. This facility is in compliance with the Subpart.

<u>EUASBESTOS</u> - This emission unit represents any active or inactive area within the landfill which has accepted asbestos waste.

I. EMISSION LIMIT(S)

There are no emission limits associated with this emission unit.

II. MATERIAL LIMIT(S)

There are no material limits associated with this emission unit.

III. PROCESS/OPERATIONAL RESTRICTION(S)

This facility takes in asbestos waste as defined by 40 CFR 61. The procedure the facility selected and uses for acceptance of this waste is as follows:

-The waste generator must schedule delivery of the waste with the landfill no less than 24 hours ahead of time.
-Upon delivery, the waste is placed in a pre-surveyed area of the landfill and covered immediately.
-The location of the waste is then placed on a map.

The facility has a form that each generator fills out prior to bringing this waste. Each form is assigned a job number. The waste is placed in a prepared location that has been previously marked by GPS. Upon

placement the waste is immediately covered to ensure no fugitive emissions from it. The job number is placed on a map of the facility at the surveyed location.

The facility is required to be secured and properly signed pursuant to the conditions of the ROP. The facility is fenced and well signed.

IV. DESIGN/EQUIPMENT PARAMETER(S)

The facility is not required to install gas collection in the landfill at this time but has installed it. The location of asbestos containing waste is mapped such that these areas can be avoided during gas collection construction. The facility does not currently segregate asbestos containing waste.

V. TESTING/SAMPLING

There are no testing parameters associated with this emission unit.

VI. MONITORING/RECORDKEEPING

The facility is required to maintain the following information on a per shipment basis:
i. The name, address, and telephone number of the waste generator.
ii. The name, address, and telephone number of the transporter(s).
iii. The quantity of the asbestos-containing waste material in cubic meters (cubic yards).
iv. The presence of improperly enclosed or uncovered waste, or any asbestos-containing waste material not sealed in leak-tight containers.
v. The date of the receipt.

A review of the records indicates this information is being kept for every shipment of asbestos containing material received. No discrepancies in this information were noted. As noted above, records of the location, nature, and quantity of each shipment were being kept. Also as noted above, any shipment received was covered immediately eliminating any chance of any friable material becoming airborne.

VII. REPORTING

The facility currently submits semi-annual and annual ROP reports, usually in a timely manner but recently received a VN for late reporting (see MACES). At no time in the last 12 months was any asbestos containing waste disturbed from its original placement, therefore no reporting was submitted to that effect.

VIII. STACK/VENT RESTRICTION(S)

There are no stack parameters associated with this emission unit.

IX. OTHER REQUIREMENT(S)

There are no other requirements associated with this emission unit.

At the time of the inspection, this facility was in compliance with applicable air permitting.

NAME ______ DATE 11/21/17 SUPERVISOR ______